

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/08/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0002589

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: JYOTI ELIAS

and

DEFENDANT: BETTER ROOTER, INC.,
ET AL.

NATURE OF PROCEEDINGS: GOOD FAITH SETTLEMENT

RULING

Defendants 4Bach, LP and HB Bona LLC (“Settling Defendants”) filed a motion for good faith settlement and for an order barring any further complaints or cross-complaint against them for implied indemnity, equitable indemnity or contribution . A notice of the motion was served on all parties and no opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

Settling Defendants’ motion is, therefore, granted.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHnZEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court’s website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/08/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006481

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: DIRK AGUILAR

vs.

DEFENDANT: JUAN ANON ET AL.

NATURE OF PROCEEDINGS: MOTION – COMPEL – DISCOVERY FACILITATOR PROGRAM

RULING

This matter concerns Plaintiff's motion to compel Defendants Juan Anon, Nataliya Anon, and Maluk, LLC to provide further responses to Form Interrogatories, Special Interrogatories, and Requests for Production. A discovery facilitator was appointed, but on April 22, 2026, the parties requested another facilitator due to conflicts. On May 13, 2026, the Court continued the motion to compel to July 8, 2026. On May 26, 2026, Discovery Facilitator Laurel Halbany was appointed to assist the parties.

Pursuant to local rule MCR 2.13, the parties were ordered to file a Declaration of Non-Resolution if the matter did not resolve. No Facilitator report was received and neither party filed a Declaration of Non-Resolution. The Court, therefore, assumes that the matter has revolved. If the matter did not resolve after facilitation, either party may place the matter back on calendar by filing a Declaration of Non-Resolution per MCR 2.13H and by appearing ex parte to reschedule the hearing.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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